

Smt. Asma Begam v. State of U.P. & Others

Allahabad High Court · Division Bench · 23 January 2013 · 2013 SCC OnLine All 512 · Writ - C No. 3765 of 2013 · **Interim order — reopening notice stayed pending admission**

HEADNOTE

Interim order. After a consumer's representation under Clause 6.5 of the U.P. Electricity Supply Code, 2005 had been decided by the competent authority and the amount found due had been deposited, the authority issued a fresh notice reopening the matter on the ground that the Executive Engineer (Test) could not produce evidence. The petitioner contended the authority has no power to review its own Clause 6.5 order. Holding the matter to require consideration, the Court issued notice and, as interim relief, stayed proceedings pursuant to the reopening notice, subject to the petitioner continuing to deposit future electricity charges. No final view was expressed on the power to review.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Reopening/review of a decided Clause 6.5 order — interim stay

QUESTION

(Interim) Can the competent authority reopen/review its own decided Clause 6.5 order after the assessed amount has been deposited?

HOLDING

The Court held the question requires consideration and, as interim relief, stayed proceedings under the reopening notice of 23.11.2012 pending admission, on condition the petitioner keeps depositing future electricity charges. No final view was expressed on whether the authority has power to review its Clause 6.5 order. ¶ (order)

FLAG Interim order only — the issue (power to review a Clause 6.5 order) is left for final hearing.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE AUTHORITY MAY REVIEW ITS OWN CLAUSE 6.5 ORDER

Raised as the central question ('no power to review'); only interim protection was granted, the merits being reserved for admission/final hearing. ¶ (order)